

SH01

Return of allotment of shares

RE-SCAN Laserform

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Please go to www.companieshouse.gov.uk

☒ **What this form is for**
You may use this form to give
notice of shares allotted following
incorporation

☐ **What this form is NOT for**
You cannot use this form to
give notice of shares taken by s
on formation of the company
for an allotment of a new cl
shares by an unlimited com



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23/04/2014

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COMPANIES HOUSE

WEDNESDAY

1 Company details

Company number 0 8 5 5 5 8 3 1
Company name in full ALPHA FMC GROUP HOLDINGS LIMITED

→ **Filing in this form**
Please complete in typescript or in
bold black capitals

All fields are mandatory unless
specified or indicated by *

2 Allotment dates ①

From Date d 1 5 m 0 4 y 2 0 y 1 4
To Date d d m m y y y y

① **Allotment date**
If all shares were allotted on the
same day enter that date in the
'from date' box. If shares were
allotted over a period of time,
complete both 'from date' and 'to
date' boxes

3 Shares allotted

Please give details of the shares allotted, including bonus shares
(Please use a continuation page if necessary)

② **Currency**
If currency details are not
completed we will assume currency
is in pound sterling

Class of shares (E.g. Ordinary/Preference etc.)	Currency ②	Number of shares allotted	Nominal value of each share	Amount paid (including share premium) on each share	Amount (if any) unpaid (including share premium) on each share
B ORDINARY	GBP	343277	1 00	1.00	

If the allotted shares are fully or partly paid up otherwise than in cash, please
state the consideration for which the shares were allotted

Continuation page
Please use a continuation page if
necessary

Details of non-cash
consideration

If a PLC, please attach
valuation report (if
appropriate)

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Statement of capital

Section 4 (also Section 5 and Section 6, if appropriate) should reflect the company's issued capital at the date of this return

4

Statement of capital (Share capital in pound sterling (£))

Please complete the table below to show each class of shares held in pound sterling. If all your issued capital is in sterling, only complete Section 4 and then go to Section 7

Class of shares (E g Ordinary/Preference etc)	Amount paid up on each share ①	Amount (if any) unpaid on each share ①	Number of shares ②	Aggregate nominal value ③
A1 ORDINARY	0.01		461552	£ 4,615.52
A2 ORDINARY	0.01		45948	£ 459.58
B ORDINARY	1.00		497823	£ 4,978.23
C ORDINARY	0.01		490000	£ 4,900.00
Totals			1495323	£ 14,953.33

5

Statement of capital (Share capital in other currencies)

Please complete the table below to show any class of shares held in other currencies
Please complete a separate table for each currency

Currency				
Class of shares (E g Ordinary / Preference etc)	Amount paid up on each share ①	Amount (if any) unpaid on each share ①	Number of shares ②	Aggregate nominal value ③
Totals				

Currency				
Class of shares (E g Ordinary/Preference etc)	Amount paid up on each share ①	Amount (if any) unpaid on each share ①	Number of shares ②	Aggregate nominal value ③
Totals				

6

Statement of capital (Totals)

Please give the total number of shares and total aggregate nominal value of issued share capital		④ Total aggregate nominal value Please list total aggregate values in different currencies separately. For example £100 + €100 + \$10 etc
Total number of shares		
Total aggregate nominal value ④		

① Including both the nominal value and any share premium

② E g Number of shares issued multiplied by nominal value of each share

③ Total number of issued shares in this class

Continuation Pages

Please use a Statement of Capital continuation page if necessary

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Return of allotment of shares

7 Statement of capital (Prescribed particulars of rights attached to shares)

Please give the prescribed particulars of rights attached to shares for each class of share shown in the statement of capital share tables in **Section 4** and **Section 5**

Class of share

PLEASE SEE CONTINUATION SHEETS

Prescribed particulars

1

1 Prescribed particulars of rights attached to shares

The particulars are

- a particulars of any voting rights, including rights that arise only in certain circumstances,
- b particulars of any rights, as respects dividends, to participate in a distribution,
- c particulars of any rights, as respects capital, to participate in a distribution (including on winding up), and
- d whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder and any terms or conditions relating to redemption of these shares

A separate table must be used for each class of share

Continuation page

Please use a Statement of Capital continuation page if necessary

Class of share

Prescribed particulars

1

Class of share

Prescribed particulars

1

8 Signature

I am signing this form on behalf of the company

Signature

Signature

X

N. S. Butler

X

This form may be signed by

Director 2, Secretary, Person authorised 1, Administrator, Administrative receiver, Receiver, Receiver manager, CIC manager

2 Societas Europaea

If the form is being filed on behalf of a Societas Europaea (SE) please delete 'director' and insert details of which organ of the SE the person signing has membership

3 Person authorised

Under either section 270 or 274 of the Companies Act 2006

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Return of allotment of shares



Presenter information

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name

Company name

BIRD & BIRD LLP

Address 15 FETTER LANE

Post town LONDON

County/Region

Postcode

E

C

4

A

1

J

P

Country

DX

Telephone



Important information

Please note that all information on this form will appear on the public record.



Where to send

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below.

For companies registered in England and Wales
The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ
DX 33050 Cardiff

For companies registered in Scotland
The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post)

For companies registered in Northern Ireland
The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG
DX 481 N R Belfast 1



Checklist

We may return the forms completed incorrectly or with information missing.

Please make sure you have remembered the following.

- ☐ [x] The company name and number match the information held on the public Register
- ☒ [x] You have shown the date(s) of allotment in section 2
- ☐ [x] You have completed all appropriate share details in section 3
- ☐ [x] You have completed the appropriate sections of the Statement of Capital
- ☒ [x] You have signed the form



Further information

For further information please see the guidance notes on the website at www.companieshouse.gov.uk or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.companieshouse.gov.uk

**SH01 – continuation page
Return of allotment of shares**

Statement of capital (Prescribed particulars attaching to shares)

Class of Share **A 1 Ordinary**

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company.

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only

proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:

4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any intercreditor or similar arrangement); or

4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or

4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fail or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or

4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement.

5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:

5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and

5.2 new Shares may be issued, ranking ahead of or *pari passu* with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.

6. The provisions of **Article 13.3.5** shall:

6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;

6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.

7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:

7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and

7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

- in either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:

- 8.1 If, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;
- 8.2 If, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;
- 8.3 If any holder of Management Shares becomes a Leaver; or
- 8.4 If any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.

9. If any of the circumstances stated at **Article 13.3.8** have occurred:

- 9.1 the Shares which such holder holds or to which he is entitled; and
- 9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),

shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3** Error! Reference source not found. or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).

10. The provisions of **Article 13.3.9** shall continue to apply:

- 10.1 in the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;
- 10.2 in the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and
- 10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B

Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (*pari passu* as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.

Statement of capital (Prescribed particulars attaching to shares)

Class of Share A 2 Ordinary

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company.

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:
- 4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any Intercreditor or similar arrangement); or
 - 4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or
 - 4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fail or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or
 - 4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement.
5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:
- 5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and
 - 5.2 new Shares may be issued, ranking ahead of or pari passu with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.
6. The provisions of **Article 13.3.5** shall:
- 6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;
 - 6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.
7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:
- 7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and
 - 7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

In either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:
- 8.1 If, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;
- 8.2 If, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;
- 8.3 If any holder of Management Shares becomes a Leaver; or
- 8.4 if any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.
9. If any of the circumstances stated at **Article 13.3.8** have occurred:
- 9.1 the Shares which such holder holds or to which he is entitled; and
- 9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),
- shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3** or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).
10. The provisions of **Article 13.3.9** shall continue to apply:
- 10.1 in the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;
- 10.2 In the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and
- 10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.

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Statement of capital (Prescribed particulars attaching to shares)

Class of Share **B Ordinary**

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (Inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company.

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:
- 4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any intercreditor or similar arrangement); or
- 4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or
- 4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fall or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or
- 4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement.
5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:
- 5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and
- 5.2 new Shares may be issued, ranking ahead of or *pari passu* with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.
6. The provisions of **Article 13.3.5** shall:
- 6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;
- 6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.
7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:
- 7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and
- 7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

In either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:
- 8.1 if, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;
- 8.2 If, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;
- 8.3 If any holder of Management Shares becomes a Leaver; or
- 8.4 if any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.
9. If any of the circumstances stated at **Article 13.3.8** have occurred:
- 9.1 the Shares which such holder holds or to which he is entitled; and
- 9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),
- shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3** Error! Reference source not found. or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).
10. The provisions of **Article 13.3.9** shall continue to apply:
- 10.1 in the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;
- 10.2 In the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and
- 10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount to equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.

SH01 – continuation page
Return of allotment of shares

Statement of capital (Prescribed particulars attaching to shares)

Class of Share **C Ordinary**

Prescribed Particulars

Where references to "Articles" are made, these are to the Articles of Association of the Company and defined terms used in these prescribed particulars shall have the same meaning as the defined terms in the Articles of Association of the Company.

Voting

1. Subject to any rights or restrictions for the time being attached to any class or classes of Shares, and to **Articles 13.3.3 to 13.3.10**, each holder of Voting Ordinary Shares shall be entitled to receive notice of, and to attend and speak, at any general meeting and at any separate class meeting of the Company for Shares of the class they hold and:
 - 1.1 the holders of the A Ordinary Shares (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the holders of the C Ordinary Shares pursuant to **Article 13.3.1.2** and where there is more than one holder of A Ordinary Shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by holders of A Ordinary Shares that his holding of A Ordinary Shares bears to the total number of A Ordinary Shares in issue; and
 - 1.2 the holders of the C Ordinary Shares (as a class) shall subject to **Articles 13.3.4 to 13.3.10** (inclusive) be entitled to cast 49% of the total number of voting rights capable of being cast by all holders of Voting Ordinary Shares and where there is more than one holder of C Ordinary Shares the voting rights capable of being cast by the holders of the C Ordinary Shares shall be divided equally amongst all holders of the C Ordinary Shares in issue; and
 - 1.3 the holders of each of the B Ordinary Shares shall not be entitled to cast any vote at any general meeting of the Company.

The holders of the B Ordinary Shares shall only be entitled to receive notice of, and to attend and speak, at any separate class meeting of the Company for Shares of the class they hold but shall be entitled to receive notice of, to attend but not speak or vote at any general meeting of the Company.

2. Each holder shall be entitled to appoint more than one proxy to exercise all or any of his rights to attend and to speak and vote at a general meeting or at a separate class meeting of the Company provided that each proxy is appointed to exercise the rights attached to a different Voting Ordinary Share or Voting Ordinary Shares held by such holder.
3. If more than one proxy is appointed in respect of a different Voting Ordinary Share or Voting Ordinary Shares by a holder in accordance with **Article 213.3.2** but the document appointing the proxies does not specify to which Voting Ordinary Share or Voting Ordinary Shares the appointment relates, then the person first named as proxy in such document shall be the only proxy for such holder entitled to attend and vote at the relevant general meeting or separate class meeting.

4. The provisions of **Article 13.3.5** shall apply if:
 - 4.1 the Company has failed to redeem any of the Loan Notes on the due date for redemption and/or pay interest within 5 Business Days of the due date for payment in accordance with the Loan Note Instruments (for whatever reason including any restriction imposed by any Intercreditor or similar arrangement); or
 - 4.2 the Company is in breach of any of the financial covenants under the Facility Documents; or
 - 4.3 the Company is in the reasonable opinion of the Lead Investor (acting in good faith) likely to fail or breach (as appropriate) at any time during the following 12 months (based on the most recent monthly information provided pursuant to clause 6 of the Investment Agreement) the financial covenants as set out in the Facility Documents; or
 - 4.4 there is a material breach of the provisions of these Articles or the Investment Agreement by the Company or the Managers (or any of them) other than a breach of the warranties at paragraph 2 of Part 1 of Schedule 5 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement.
5. If any of the circumstances stated at **Article 13.3.3** have occurred and a written notice has been served upon the Company by the Lead Investor, subject to the terms of the Investment Agreement:
 - 5.1 the holders of Management Shares (or any proxy or proxies of such holders) shall cease to be entitled to receive notice of, or to attend and vote at (whether on a show of hands or on a poll), any general meeting of the Company or to be entitled to receive any further Shares issued by way of rights issue (or otherwise); and
 - 5.2 new Shares may be issued, ranking ahead of or pari passu with the Management Shares, without the consent of the holders of the Management Shares and the provisions of **Article 17** shall not apply.
6. The provisions of **Article 13.3.5** shall:
 - 6.1 in the case of the circumstances at **Article 13.3.4.1** existing, continue to apply until the Loan Notes required to be redeemed have been so redeemed or any interest due has been paid;
 - 6.2 in the case of the circumstances at **Articles 13.3.4.2 to 13.3.4.4** (inclusive) existing, continue to apply for so long as such breach or failure subsists and has not been rectified to the reasonable satisfaction of the Lead Investor.
7. For the avoidance of doubt, the provisions in **Article 13.3.5** shall, where a written notice has been served upon the Company in accordance with **Article 13.3.5**, enable the holders of any A1 Ordinary Shares and/or A2 Ordinary Shares in issue from time to time:
 - 7.1 to pass written resolutions of the Company pursuant to section 288 of the 2006 Act; and
 - 7.2 to consent to the holding of a general meeting of the Company on short notice pursuant to section 307(4) of the 2006 Act,

In either case, on the basis that all such holders would constitute the only holders who would be entitled to attend and vote at a general meeting of the Company.

8. The provisions of **Article 13.3.9** shall apply:
- 8.1 if, at any time without Investor Consent, any holder (other than an Investor) or any former holder has transferred Shares in breach of the provisions of these Articles;
- 8.2 if, at any time without Investor Consent, any holder (other than an Investor) is in material breach of the provisions of these Articles and/or the Investment Agreement or any former holder (if still bound by the Investment Agreement) is in material breach of the provisions of the Investment Agreement other than a breach of the warranties at paragraph 2 of Part 1 or paragraph 1 of Part 3 of Schedule 5 of the Investment Agreement;
- 8.3 If any holder of Management Shares becomes a Leaver; or
- 8.4 if any holder has served a Transfer Notice pursuant to **Article 13.3.8** (Voluntary Transfers) in respect of any Management Shares.
9. If any of the circumstances stated at **Article 13.3.8** have occurred:
- 9.1 the Shares which such holder holds or to which he is entitled; and
- 9.2 any Shares formerly held by such holder which have been transferred either in breach of the provisions of these Articles or in accordance with **Article 19** (Permitted Transfers),
- shall cease to entitle the holder thereof (or any proxy) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company or to be entitled to receive any further Shares Issued by way of rights issue (or otherwise) from the date of any breach referred to at **Articles 13.3.8.1** and **13.3.8.2** the date a Leaver becomes a Leaver in accordance with **Article 22.3** Error! Reference source not found. or the date upon which a Transfer Notice is served pursuant to **Article 19.2.1** (as the case may be).
10. The provisions of **Article 13.3.9** shall continue to apply:
- 10.1 in the case of **Articles 13.3.8.1** or **13.3.8.2** applying, for so long as such breach subsists;
- 10.2 in the case of **Article 13.3.8.3** or **13.3.8.4** applying, until such time as the relevant Management Shares have been transferred pursuant to the provisions of **Articles 19.2.1** and/or **22** (as the case may be); and
- 10.3 notwithstanding any other provisions in these Articles, if any holder of Management Shares retains any Management Shares after the operation in full of the provisions of **Article 22** whilst such holder (or any person who has acquired such Shares under a permitted transfer (directly or indirectly) under **Article 19**) continues to hold such Shares.

Dividends

Any profits which the Company determines to distribute in respect of a Financial Year shall, with the approval of the holders in general meeting and Investor Consent, be applied in distributing the balance of such profits amongst the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares then in issue (but disregarding any Shares held by the Company in treasury) *pari passu* according to the number of such Shares held by them respectively as if they constituted one class of Share.

Capital

Subject to the provisions of **Article 34**, on a return of capital on a winding-up or liquidation of the Company or any other return of capital (each a "**Relevant Event**"), the assets of the Company available for distribution after payment of its debts and liabilities and of the costs, charges and expenses incurred in connection with such Relevant Event will be distributed amongst the holders as follows:

Firstly, in paying to the holders of the C Ordinary Shares, an amount equal to the Issue Price paid for such Shares; and

Secondly, the balance to be paid to the holders of the A1 Ordinary Shares, the A2 Ordinary Shares and the B Ordinary Shares in proportion to the number of A1 Ordinary Shares, A2 Ordinary Shares and B Ordinary Shares held by them respectively (pari passu as if they constituted one class of Share).

WATERFALL

1. On an Exit which occurs on or before the sixth anniversary of the Adoption Date, the Exit Capitalisation shall be paid to the holders of Equity Shares in the following order of priority:
 - 1.1 first, in paying to each of the holders of C Ordinary Shares an amount equal to the Issue Price paid for such Shares;
 - 1.2 second, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount equal to 50.75% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding, until such time as the holders of A Ordinary Shares have received an amount equal to the Second Slice Return; and
 - 1.3 thereafter, the balance of the Exit Capitalisation shall be distributed so that: (i) an amount to equal to 30% of the proceeds shall be paid to the holders of the A Ordinary Shares pro rata to the number of A Ordinary Shares outstanding; and (ii) the balance is paid to the holders of the B Ordinary Shares (who are not Investors) pro rata to the number of B Ordinary Shares outstanding.
 - 1.4 The Board and the members of the Company shall put in place such arrangements as are necessary to give effect to the provisions of **Article 34** including should the Board (with the consent of the Lead Investor) deem it necessary to convert Equity Shares of any particular class into Deferred Shares provided always that where there is more than one holder of Equity Shares of a class to be so converted then such conversion of that class shall take place pro rata as nearly as may be to each such holders holding of shares of that class.

For the avoidance of doubt, the Relevant Cash Inflows and the Relevant Cash Outflows shall not include any amounts advanced by the A2 Investors pursuant to the Facility Agreement or any amounts paid to any A2 Investors pursuant to the Facility Agreement.

Redemption - there are no rights of redemption attaching to these shares.



Companies House

COMPANY NAME: ALPHA FMC GROUP HOLDINGS
LIMITED
COMPANY NUMBER: 08555831

A second filed SH01 was registered on 08/08/2014